vessel and fisheries observers;
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
WATCHKEEPING FOR FISHING VESSEL PERSONNEL, 1995 (Revised annex to the 1995 STCW-F Convention)
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.24 Function means a group of tasks, duties and responsibilities, as specified in the STCW-F Code, necessary for fishing vessel operation, safety of life at sea or protection of the marine environment;
.25 Fishing training vessel means a dedicated training vessel, designed for catching and storing fish, which provides a training opportunity for demonstration and assessment of the competences required by the provisions of chapter II of this annex;
.26 GMDSS radio operator means a person who is qualified in accordance with
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SOURCE: MSC.561(108).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.561(108).pdf
provisions of chapter II of this annex;
.26 GMDSS radio operator means a person who is qualified in accordance with the provisions of regulation II/6 of the Convention;
.27 Certificate of competency means a certificate issued and endorsed for skippers, officers and GMDSS radio operators in accordance with the provisions of chapter II of this annex and entitling the lawful holder thereof to serve in the capacity and perform the functions involved at t he level of responsibility specified therein; and
.28 Certificate of proficiency means a certificate, other than a certificate of competency issued to fishing vessel personnel, stating that the relevant requirements of training, competencies or seagoing service in the Convention have been met.
2 These regulations are supplemented by the mandatory provisions contained in part A of the STCW-F Code and:
.1 any reference to a requirement in a regulation also constitutes a reference to
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SOURCE: MSC.561(108).pdf
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of the STCW-F Code and:
.1 any reference to a requirement in a regulation also constitutes a reference to the corresponding section of part A of the STCW-F Code;
.2 in applying these regulations, the related guidance and explanatory material contained in part B of the STCW-F Code should be taken into account to the greatest degree possible in order to achieve a more uniform implementation of the Convention provisions on a global basis;
.3 amendments to part A of the STCW -F Code shall be adopted, brought into force and take effect in accordance with the provisions of article 10 of the Convention concerning the amendment procedure applicable to the annex; and
.4 part B of the STCW -F Code shall be amended by the Maritime Safety Committee in accordance with its rules of procedure.
Regulation I/2
Application

1 The Administration of a Party, if it considers it unreasonable or impracticable to apply
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SOURCE: MSC.561(108).pdf
URL:
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Regulation I/2
Application
1 The Administration of a Party, if it considers it unreasonable or impracticable to apply
the full requirements of regulations II/3, II/4 and II/5-1-1, II/5-1-2 or II/5-2 and the requirement
of the use of the English language to personnel serving on boar d a fishing vessel of less
than 45 metres in length operating exclusively from its ports and fishing within its limited
waters, may determine which of these regulations should not apply, wholly or in part, to such
personnel, without derogation from the principles of safety in the Convention. In such a case,
the Administration concerned shall report to the Secretary -General on the details of the
measures it has taken with respect to the training and certification of such personnel.
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND

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AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
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2 For the purpose of this Convention, the Administration may decide to use the following
gross tonnage in place of length (L) as the basis for measurement for all chapters:
.1 a gross tonnage of 300 shall be considered equivalent to a length (L)
of 24 metres; and
.2 a gross tonnage of 950 shall be considered equivalent to a length (L)
of 45 metres.
Regulation I/3
Certificates and endorsements
1 Certificates of competency for fishing vessel personnel shall only be issued by the
Administration if the requirements for service, age, medical fitness, training, qualification and
examinations are met in accordance with these regulations.
2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be
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SOURCE: MSC.561(108).pdf
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examinations are met in accordance with these regulations.
2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be
endorsed by that Party attesting the issue of that certificate in the form as prescribed in format 1
or 2 of section A-I/3 of the STCW-F Code.
3 Certificates and endorsements shall be issued in the official language or languages
of the issuing country. If the language used is not English, the text shall include a translation
into that language.
4 In respect of radio operators, Parties may:
.1 include the additional knowledge required by regulation II/6 in the

examination for the issue of a certificate complying with the Radio
Regulations; or
.2 issue a separate certificate indicating that the holder has the additional
knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority
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SOURCE: MSC.561(108).pdf
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knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority
of another Party in compliance with regulation I/7 shall issue an endorsement attesting the
recognition of that certificate in the form prescribed in format 3 of section A-I/3 of the STCW-F
Code.
6 The endorsement shall expire as soon as the certificate endorsed expires or is
withdrawn, suspended or cancelled by the Party which issued it and, in any case, not more
than five years after the date of issue.
7 Appropriate certificates of competency issued under the provisions of the 1978 STCW
Convention for the holder to serve as a chief engineer officer, an engineer officer or GMDSS
radio operator shall be deemed to be a corresponding certificate for the purposes of
paragraph 1 with regard to fishing vessels.
8 Medical certificates issued in accordance with the provisions of regulation I/9 of
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SOURCE: MSC.561(108).pdf
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paragraph 1 with regard to fishing vessels.
8 Medical certificates issued in accordance with the provisions of regulation I/9 of
the 1978 STCW Convention shall be accepted as valid for the personnel of fishing vessels.
9 Subject to the variations permitted under formats 1, 2 and 3 of section A-I/3 of the
STCW-F Code, Administrations may use a format different from the format given in the section
provided that such format contains, as a minimum, the required information and that the
particulars are inserted in Roman characters and Arabic figures.
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
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Regulation I/4
Control procedures
1 Control exercised by a duly authorized officer under article 8 shall be limited to the
following:

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Regulation I/4
Control procedures
1 Control exercised by a duly authorized officer under article 8 shall be limited to the
following:

.1 verification that all fishing vessel personnel serving on board who are required to be certificated by this Convention are so certificated or hold the required dispensation. Such certificates shall be accepted unless there are clear grounds for believing that a certificate has been fraudulently obtained or that the holder of a certificate is not the person to whom that certificate was originally issued; and

.2 assessment of the ability of the fishing vessel personnel to maintain watchkeeping standards as required by the Convention if there are clear grounds for believing that such standards are not being maintained, because the following have occurred:

.1 the vessel has been involved in a collision, grounding or stranding; or

.2 there has been a discharge of substances from the vessel when

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SOURCE: MSC.561(108).pdf

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.1 the vessel has been involved in a collision, grounding or stranding; or

.2 there has been a discharge of substances from the vessel when

under way, at anchor or at berth which is illegal under international conventions; or

.3 the vessel has been manoeuvred in an erratic or unsafe manner, whereby routeing measures adopted by the Organization, or safe navigation practices and procedures, have not been followed; or

.4 the vessel is otherwise being operated in such a manner as to pose a danger to persons, property or the environment.

2 In the event that deficiencies are found under paragraph 1, the officer carrying out the control shall forthwith inform, in writing, the skipper of the vessel and the Administration, so that appropriate action may be taken. Such notification shall specif y the details of the deficiencies found and the grounds on which the Party determines that these deficiencies pose a danger to persons, property or the environment.

SOURCE: MSC.561(108).pdf

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deficiencies found and the grounds on which the Party determines that these deficiencies pose a danger to persons, property or the environment.

3 Deficiencies which may be deemed to pose a danger to persons, property or the environment include the following:

.1 failure of persons, required to hold a certificate, to have an appropriate certificate or dispensation;

.2 failure of navigational or engineering watch arrangements to conform to the requirements specified for the vessel by the Administration;

.3 absence in a watch of a person qualified to operate equipment essential to